

ACTION NO. _____

**IN THE 7TH JUDICIAL CIRCUIT
OF THE STATE OF CHESAPEAKE
IN AND FOR HARRISON COUNTY**

PLAINTIFF_NAME,
Plaintiff,

v.

DEFENDANT_NAME,
Defendant.

PETITION TO RESTRICT PRETRIAL RELEASE

NOW COMES the People of Harrison County, by and through their Assistant District Attorney, **NAME**, and respectfully requests, under this Court's authority, that this Court restrict reasonably the above-name defendants pretrial release conditions, and in support thereof the People state as follows:

- ☐ The proof is evident and the presumption great that the Defendants committed an offense that involves firearms and violence;
- ☐ The defendants pose a real and present threat to the safety of any person or persons in the community, as may or may not be evident via the Record of Arrests submitted;
- ☐ The defendants pose a flight risk and a high likelihood of willful flight to avoid prosecution.

MANDATE OF PRETRIAL RELEASE

Based on the aforementioned above reasons, the Court should enter an immediate pretrial release order that requires and mandates the following from the above listed defendants:

1. Appear reasonably, unless presence is waived, at all court sessions;
2. Submit to the orders and process of the Court;
3. Not violate any criminal statute of any jurisdiction;
4. Comply with terms of pretrial release and act within twenty-four (24) hours of any stipulations that the Court may mandate as it relates to firearms.

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CONDITIONS OF PRETRIAL RELEASE

Additionally, the following conditions are necessary to ensure the defendant's appearance in court and ensure they do not commit any further criminal offenses, in addition to ensuring the defendants comply with all conditions of pretrial release:

- ☐ Refrain from having in defendants custody or control, purchasing, possessing or receiving firearms, firearm ammunition, county firearms license, or other dangerous weapons.
- ☐ Physically surrender any and all firearms, firearm ammunition, or other dangerous weapons owned by the defendant or in the defendant's custody, control, or possession immediately, but in no circumstance later than twenty-four (24) hours from this order. Said items shall be surrendered to the Jamestown Police Department or Harrison County Sheriff's Office.

1. This includes firearms at the residence of LOCATION

- ☐ Have no contact directly or indirectly, except through their counsel, with the following individuals and/or refrain from going to the certain described geographic areas or premises:
 - 1. Any victims in this case;
 - 2. Any area or location where the victims may be, and if unknown, to leave such areas as soon as the victims presence is known or could reasonably be known.

Dated: DATE

Respectfully submitted:

name

NAME

Counsel of Record
District Attorney's Office